

no pretence for claiming the beneficial ownership, when, by the express language of the instrument, the whole property has been impressed with a trust.

17. **"Trust" and "trustee," do not necessarily exclude a beneficial gift.**—Although the introduction of the words "upon trust" may be strong evidence of the intention not to confer on the devisee a beneficial interest (*h*), yet that construction may be negatived by the context, or the general scope of the instrument (*i*); and in *like manner [*149] the devisee may be designated as "trustee," but the expression may be explained away; as, for instance, if the term be used with reference to one only of two funds, the devisee may still establish his title to the beneficial interest in the other (*a*). On the other hand there may be a total *absence* of the word "trust" or "trustee" throughout the whole will, and yet the Court may collect an intention that the devisee or legatee should be a trustee, as where there is a direction that the devisee shall be allowed all his costs and expenses, which would be without meaning if he took beneficially (*b*).

18. **Parol evidence.**—Where a trust results to the settlor or his representative, not by presumption of law, but by force of the written instrument, the trustee is not at liberty to defeat the resulting trust by the production of extrinsic evidence by parol (*c*).

19. **General observations as to resulting trusts.**—Having distinguished between the two kinds of resulting trusts (a classification necessary to be made for the purpose of ascertaining the admissibility of parol evidence), we proceed to introduce a few remarks applicable to resulting trusts generally, whether arising by presumption of law, or from the language of the instrument.

(*h*) See *Hill v. Bishop of London*, 1 Atk. 620; *Woollett v. Harris*, 5 Mad. 452.

(*i*) *Dawson v. Clarke*, 15 Ves. 409; S. C. 18 Ves. 247, see 257; *Coningham v. Mellish*, Pr. Ch. 31; *Cook v. Hutchinson*, 1 Keen, 42; *Hughes v. Evans*, 13 Sim. 490.

(*a*) *Batteley v. Windle*, 2 B. C. C.

31; *Pratt v. Sladden*, 14 Ves. 193; and see *Gibbs v. Rumsey*, 2 V. & B. 294.

(*b*) *Saltmarsh v. Barrett*, 29 Beav. 474; 3 De G. F. & J. 279.

(*c*) See *Langham v. Sanford*, 17 Ves. 442; S. C. 19 Ves. 643; *Rachfield v. Careless*, 2 P. W. 158; *Gladding v. Yapp*, 5 Mad. 59; *White v.*